

9:00 AM

Line 2

24-CIV-04638 RAMY KAUFLEDER EDEN v. GRAND MARTCO, INC., ET AL

RAMY KAUFLEDER EDEN
GRAND MARTCO, INC.

MICHEL J. MANNING
DONALD J. DOWLING

Plaintiff's Continued Motion to Approve Settlement from September 4, 2026

TENTATIVE RULING:

The Motion for Settlement Approval by Plaintiff Ramy Kaufler Eden ("Plaintiff") was continued from September 4, 2026 to allow Plaintiff to cure two notice and service defects, as noted below. The Motion is now GRANTED.

Prior Issues from September 4, 2026

1. The proof of service that was attached to the Notice of Motion and Motion for Settlement Approval, filed on February 23, 2026, was unsigned. The Motion is required to be served not only on Defendant, but also the Attorney General. (Cal. Code Regs, tit. 11, § 3008 [in a private Proposition 65 action, motion and supporting papers must be served on the California Attorney General at least forty-five days prior to the hearing on the motion]; Health and Safety Code, § 25249.7, subd. (f)(5) [plaintiff shall serve motion and all supporting papers on the Attorney General, who may appear and participate in a proceeding without intervening in the case].) Plaintiff has now filed a Notice of Continued Hearing Date re Motion for Settlement Approval that does reflect service on Defendant's counsel and on the Attorney General, curing this defect.
2. The original Notice of Hearing also failed to provide the correct date and location of the hearing. However again, Plaintiff has now filed a Notice of Continued Hearing Date re Motion for Settlement Approval that does reflect the correct date and the location of Dept. 20 at the Northern Branch, served on Defendant's counsel and on the Attorney General, curing this defect.

Factual Background

The action arises out of an alleged violation of Proposition 65 ("Prop 65"), which is found at Health and Safety Code section 25249.5 et seq.

The Complaint alleges that Defendant Grand Martco, Inc.'s ("Defendant") gas station located at 602 El Camino Real in Redwood City, failed to warn of environmental exposures to gasoline by posting a sign at each gas pump of such exposures, as required by Prop 65. Plaintiff Ramy Kaufler Eden ("Plaintiff") is acting as a private citizen enforcer. Plaintiff seeks a preliminary and permanent injunction from such exposures without providing clear and reasonable warnings, \$2,500 per day for each violation, and reasonable attorney's fees and costs.

On 2/23/26, Plaintiff filed this Motion for Settlement Approval.

Merits Analysis

"No person in the course of doing business shall knowingly and intentionally expose any individual to a chemical known to the state to cause cancer or reproductive toxicity without first giving clear and reasonable warning to such individual, except as provided in Section 25249.10." (Health & Saf. Code, § 25249.6.) A person who violates section 25249.6 may be enjoined by any court of competent jurisdiction. (Health & Saf. Code, § 25249.7, subd. (a).) An action may be brought a person in the public interest if: (1) the private action is commenced more than 60 days from the date the person has given notice of an alleged violation of section 25249.6 to the Attorney General and the district attorney, city attorney or prosecutor in whose jurisdiction the violation is alleged to have occurred and the alleged violator; and (2) neither the Attorney General, a district attorney, a city attorney or prosecutor has commenced and is diligently prosecuting an action against the violation. (Id., subd. (d)(1).) On October 30, 2023, Plaintiff served a 60-day Notice of Violation on Defendant, the California Attorney General and the San Mateo County District Attorney. (Charo Decl., ¶ 6, and Exh. B.) No public prosecutor commenced an enforcement action regarding the allegations in the Notice. (Id., ¶ 7.)

If there is a settlement of the public interest action brought by a person, the plaintiff shall submit the settlement to the court for approval upon noticed motion. (Health & Saf. Code, § 25249.7, subd. (f)(4).) The court must make three findings before approving any settlement: (1) any warning required by the settlement complies with Prop 65; (B) any award of attorney's fees is reasonable under California law; and (3) the penalty is reasonable based on criteria in Health & Safety Code section 25249.7(b)(2). (Ibid.) The plaintiff has the burden of producing evidence sufficient to sustain each finding. (Id., subd. (f)(5).) Plaintiff provide evidence to support each of these findings, as discussed below.

a. The warnings comply with Prop 65

As part of the Settlement between Plaintiff and Defendant, Defendant agreed to provide the safe harbor warning for service stations at Defendant's gas station as set forth in the California Code of Regulations. (See Settlement, § 2.1; Cal. Code Regs., tit. 27, § 25607(a); Cal. Code Regs, tit. 27, § 25607.27 [warning for environmental exposures from service stations it to include "WARNING" in all capital letters and bold print along with "Breathing the air in this area or skin contact with petroleum products can expose you to chemicals including benzene, motor vehicle exhaust and carbon monoxide, which are known to the State of California to cause cancer and

birth defects or other reproductive harm. Do not stay in this area longer than necessary. For more information go to www.P65Warnings.ca.gov/service-station.”].) The warning that Defendant agreed to in the Settlement mirrors the safe harbor warning in the California Code of Regulations, and thus it complies with Prop 65.

b. The attorney’s fees and costs are reasonable

The Settlement provides for attorney’s fees and costs of \$14,000. This amount consists of \$1,379.26 in costs, and \$12,620.75 in attorney’s fees. Plaintiff’s counsel spent at least 23.75 hours on this action, which yields an hourly rate of \$531.40. Plaintiff’s counsel’s hourly rate for Prop 65 matters is \$600 per hour. (Charo Decl., ¶ 16.) Plaintiff’s counsel has been practicing for more than 23 years. (Id., ¶ 13.) As such, the attorney’s fees and costs seem reasonable.

c. The penalty is reasonable

Prop 65 allows a penalty up to \$2,500 per day, of which Plaintiff gets 25% and the other 75% goes to the State of California to be kept in the Safe Drinking Water and Toxic Enforcement Fund, administered by the Office of Environmental Health Hazard Assessment (“OEHHA”). (Health & Saf. Code, § 25249.12, subd. (c)(1).) The parties agreed to a total civil penalty of \$4,000, of which Plaintiff will get \$1,000 and OEHHA will get \$3,000.

To determine the reasonableness of a penalty, the court shall consider all of the following:

- (A) The nature and extent of the violation.
- (B) The number of, and severity of, the violations.
- (C) The economic effect of the penalty on the violator.
- (D) Whether the violator took good faith measures to comply with this chapter and the time these measures were taken.
- (E) The willfulness of the violator's misconduct.
- (F) The deterrent effect that the imposition of the penalty would have on both the violator and the regulated community as a whole.
- (G) Any other factor that justice may require.

(Health & Saf. Code, § 25249.7, subd. (b)(2).)

The \$4,000 civil penalty appears reasonable. Plaintiff claims that this \$4,000 penalty is identical to the penalty approved by other courts in Prop 65 matters regarding a defendant's failure to provide clear and reasonable warnings for gasoline exposure at a single service station. (Charo Decl., ¶ 19.) The severity of the violation was also moderate since those coming to the gas station were still aware that they could be exposed to gasoline. Defendant is also a small business that operates two service stations in California, including the one at issue. Therefore, this amount is sufficient to deter any future violations. Defendant further posted the required warning after receiving Plaintiff's Notice. (Charo Decl., ¶ 21; Settlement, § 2.1.) Therefore, after considering all the factors set forth in section 25249.7(b)(2), the penalty seems reasonable.

Therefore, the Motion is GRANTED with the settlement approved and Judgment to be entered pursuant to the settlement agreement terms.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

24-CIV-06301 THERESA ZLATUNICH, ET AL VS. BURLINGAME BAY ASSOCIATES, ET
AL

THERESA ZLATUNICH
BURLINGAME BAY ASSOCIATES

LAWRENCE S. VIOLA
MALCOLM D. DONALDSON

Defendant Burlingame Bay Associates' Motion for Summary Judgment

TENTATIVE RULING:

Defendant Burlington Bay Associates' Motion for Summary Judgment is DENIED, as follows:

Overview

Plaintiff Theresa Zlatunich fell on October 7, 2023, after taking about two steps onto the wooden Anza Lagoon Pedestrian Footbridge (the "Wooden Footbridge") in Burlingame; her husband Philip Zlatunich claims loss of consortium. Defendant Burlingame Bay Associates is the lessee responsible for maintaining the roughly 140-foot span where she fell. Defendant here moves for summary judgment.

Legal Standard

Cal. Code of Civ. Proc. section 437c governs both summary judgment and summary adjudication motions, and a motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Cal. Code of Civ. Proc. section 437c.) The statute permits parties to move for summary adjudication either independently or as an alternative to summary judgment, and courts apply the same substantive legal standards to both types of motions. (*Haney v. Aramark Uniform Services, Inc.* (2004) 121 Cal.App.4th 623.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444.) If the movant carries this burden of production, it causes a shift, and the opposing party must then make a prima facie showing of the existence of a triable issue of material fact. (*Id.*; see also *Lemm v. Ecolab Inc.* (2023) 87 Cal.App.5th 159.) This burden-shifting framework applies regardless of which party moves for summary judgment or summary adjudication.
